

**Judge Mosbarger – Law & Motion – Wednesday, July 15, 2026 @ 9:00 AM
TENTATIVE RULINGS**

1. 22CV00349 BARRETT, MICHELLE V. TURK, WILLIAM D ET AL

EVENT: Motion for Quieting Title

Plaintiff correctly states that “as one cannot obtain judgment for quiet title by default, the Plaintiff will present evidence in an evidentiary hearing scheduled for September 21, 2026 to “prove up” her title to the Property, pursuant to C.C.P. section 764.010.” [See Motion at Page 5, Lines 3-5]. As such, the current Motion is premature and is denied. However, the Court will consider the evidence and argument submitted by Plaintiff in relation to this Motion at the upcoming Court Trial on September 21, 2026 at 8:30 a.m. Plaintiff’s counsel is ordered to provide notice of the previously set Court Trial date to all those entitled to such notice.

2. 22CV01225 SMALLEY, BOB V. CANTERBURY, STEVEN ET AL

EVENT: Order of Examination (Canterbury Cabins, Inc., and Steven Canterbury)

Pursuant to *Code of Civil Procedure* §708.110(d), not less than 30 days prior to the date set for the examination, a copy of the order shall be personally served on the Judgment Debtor. Here, there is no proof of service evidencing such notice. If the Judgment Debtors appear, the Court will swear them in for examination.

3-4. 24CV02790 RIGGINS, KAITLYN V. TRES CHICO LLC

EVENTS: (1) Motion for Final Approval of Class Action Settlement, Class Counsel Fees Payment, Class Counsel Litigation Expenses, and Class Representative Service Payment

(2) Status Conference (Final Review Hearing)

Plaintiff’s Motion for Final Approval of Class Action Settlement, Class Counsel Fees Payment, Class Counsel Litigation Expenses, and Class Representative Service Payment is unopposed and is granted. This matter is set for a compliance hearing on August 18, 2026 at 10:30 a.m. and a compliance status report shall be filed no later than five Court days before the hearing. The Court will sign the form of order submitted by counsel.

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5. 25CV01528 GRAYSON, JOHN I, IV V. FRANCHISE TAX BOARD

EVENT: Defendant Franchise Tax Board's Motion to Set Aside Entry of Default and for Leave to Defend the Action

The Court finds that Defendant Franchise Tax Board's ("Defendant" herein) Motion to Set Aside Entry of Default and for Leave to Defend the Action was made within the period permitted by Code of Civil Procedure §473.5(a) and that the Defendant's lack of actual notice in time to defend the action was not caused by Defendant's avoidance of service or inexcusable neglect. Therefore, the Motion is granted and the Default entered on May 4, 2026 is set aside. Defendant shall file and serve its responsive pleading within 20 days' from the date of this hearing. Counsel for the Defendant shall prepare and submit a form of order consistent with this ruling within two weeks. Additionally, the Court sets this matter for a Case Management Conference on November 18, 2026 at 10:30 a.m. Case Management Conference Statements are to be timely filed and served.

6. 25CV02891 JANE DOE CFL V. CHICO UNIFIED SCHOOL DISTRICT

EVENT: Plaintiff's Motion to Compel California Commission on Teacher Credentialing to Produce Records Subpoenaed by Plaintiff

The Court does not find that the California Commission on teacher Credentialing ("the Commission" herein) is statutorily prohibited from disclosing documents, nor subject to criminal prosecution for such disclosure. The Court does find that Plaintiff Jane Doe CFL ("Plaintiff" herein) seeks discovery into Jennifer Lynn Smith's alleged misconduct, including the circumstances and reasons related to any investigation or disciplinary action related to her teaching credential, which is relevant, and could lead to the discovery of admissible evidence. Moreover, Plaintiff has demonstrated a compelling need for the non-party information. The Motion is granted. The Commission is to produce the previously withheld documents within 14 days' of this hearing, subject to a privilege log that is to be produced concurrently with the further production. Plaintiff shall prepare and submit a revised form of order consistent with this ruling within two weeks.

7. 25CV05108 BARNES, KATHERINE ET AL V. MEDERS-KNIGHT, ALI ET AL

EVENT: Cross-Defendants' Demurrer to First Amended Cross-Complaint

The Court does acknowledge that while Cross-Complainant California Open Lands, a California Non-Profit Corporation ("Cross-Complainant" herein) argues there was a failure by Cross-Defendants Katherine Barnes and Nancee Barnes ("Cross-Defendants" herein) to properly and in good faith participate in the meet and confer process, *Code of Civil Procedure* §430.41 contains no provision for compelling compliance with the meet and confer requirement, unlike the meet and confer requirement in the discovery process. See, *Code of Civil Procedure* §2023.020. Additionally, the failure to sufficiently meet and confer is not a proper ground to overrule or sustain a demurrer. *Code of Civil Procedure* §§430.41(a)(4); *Dumas v. Los Angeles County Bd. of Supervisors* (2020) 45